

		In light of the above, the motion for leave to amend is GRANTED. Plaintiff to file and serve his amended complaint within 10 days of the date of this order. The Court sets an Order to Show Cause why the case should not be transferred to Complex for August 13, 2026 at 1:30 p.m. In light of the new PAGA claim, the parties may stipulate to the transfer and the Court upon reviewing the stipulation and entering an order will vacate the August 13, 2026 hearing. <i>Plaintiff to give notice.</i>
108	Armstrong vs. DH Dental Employment Services, LLC, 25-01508012	Defendants DH Dental Employment Services, LLC, Kerr Corporation, and Envista Holdings Corporation (collectively, "Defendants"), move this Court for an order (i) compelling arbitration of Plaintiff David Armstrong's ("Plaintiff") claims against Defendants, and (ii) dismissing, or in the alternative staying, further proceedings in this Court pending resolution of this motion and completion of arbitration. Plaintiff started as a Business Analyst in 2010 for Defendants. (Complaint¶9.) Defendant employer asserts that it rolled out a Dispute Resolution Agreement ("DRA") in "on or around September of 2022 using the Workday system". (Decl. of Herold¶4.) The DRA allegedly presented to Mr. Armstrong on the Workday system is attached to the Declaration of Herold at Ex. C. Relevant portions of that Agreement provide: "1. The validity, construction, interpretation, and enforcement of this Agreement shall be governed by the substantive and procedural rules of the Federal Arbitration Act ("FAA"), as the Company operates in interstate commerce. Only a court of competent jurisdiction, and not the arbitrator, shall have the authority to resolve gateway questions of arbitrability as well as the validity of the class, collective, and representative action waiver as set forth in Paragraph 7 of this Agreement. "2. Employee and Company agree to submit all "Claims" (defined in Paragraph 6 below)

		between Employee and Company that may arise out of or relate in any way to Employee's employment with Company, including but not limited to the termination of Employee's employment and Employee's compensation, to FINAL and BINDING arbitration. The arbitration shall be held in accordance with the then-effective Judicial Arbitration and Mediation Services ("JAMS") Employment Arbitration Rules and Procedures ("JAMS Rules") (available online at http://www.jamsadr.com), as the exclusive remedy for such dispute, and not by a lawsuit or resort to court process. Employee can also obtain a copy of the JAMS Rules by contacting hrsupport.us@envistaco.com. "6. Definition of "Claim(s)": Included within the scope of this Agreement and covered by this Agreement are all Claims relating to, arising out of, in connection with, or involving Employee's application for employment, employment or termination of employment with the Company, whether based on tort, express or implied contract, any covenant of good faith and fair dealing, any federal, state, or local statute (including, but not limited to, any claims for discrimination, retaliation, and harassment, wage and hour claims, claims for payment of wages and benefits, and claims for violation of employment rights, whether based on the California Fair Employment and Housing Act, Title VII of the Civil Rights Act of 1964, as amended, the California Labor Code, the Fair Labor Standards Act, the Family and Medical Leave Act, the California Family Rights Act, the Age Discrimination in Employment Act, the Americans with Disabilities Act, or any other federal, state, or local law or regulation), any federal or state constitution and/or any public policy, equitable law, common law, or otherwise. "14. NOTE TO EMPLOYEE: YOU AND COMPANY ARE AGREEING TO HAVE ANY AND ALL CLAIMS THAT ARISE OUT OF YOUR EMPLOYMENT DECIDED BY NEUTRAL ARBITRATION INSTEAD OF A JURY OR COURT TRIAL. THIS ARBITRATION AGREEMENT AFFECTS YOUR LEGAL RIGHTS. YOU MAY WANT TO SEEK LEGAL ADVICE BEFORE ENTERING INTO THIS AGREEMENT. By signing below or by clicking I AGREE in
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		Workday, Employee acknowledges that Employee has read, understood, and voluntarily and willingly agrees to be legally bound to the terms of this Agreement. By offering this Agreement, Company is likewise agreeing to be similarly bound.” (Decl. of Herold, Ex. C.) <i>Federal Arbitration Act</i> The Federal Arbitration Act (“FAA”), which includes both procedural and substantive provisions, governs agreements involving interstate commerce. Here, the parties do not dispute that the FAA applies. The FAA states that written arbitration agreements “shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) The Supreme Court has described this provision as reflecting both a “liberal federal policy favoring arbitration,” and the “fundamental principle that arbitration is a matter of contract.” (<i>AT & T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333.) The FAA permits agreements to arbitrate to be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” (<i>Id.</i>) When deciding whether a valid arbitration agreement exists, courts generally apply “ordinary state-law principles that govern the formation of contracts.” (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944.) On a motion to compel arbitration, the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (<i>Brennan v. Opus Bank</i> (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; <i>Dean Witter Reynolds, Inc. v. Byrd</i> (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”].) “[T]he party
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		resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (<i>Green Tree Fin. Corp. v. Randolph</i> (2000) 531 U.S. 79, 91.) <i>Existence of the Agreement:</i> “Again, even where the FAA applies, “[i]n determining the rights of parties to enforce an arbitration agreement...courts apply state contract law...” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236; See also Enmark v. KF Community Care, LLC (2024) 105 Cal.App.5th 463, 477 [“[W]hether a valid arbitration agreement exists is determined by applying California law concerning the formation, revocation, and enforcement of contracts [citation], even if the challenged agreement would fall within the scope of the FAA.”]) ““If a party to a civil action asks the court to compel arbitration of the pending claim, the court must determine in a summary proceeding whether an ‘agreement to arbitrate the controversy exist.’” (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 754 (Iyere).) ““The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement.” (Iyere, supra, 87 Cal.App.5th at p. 755.) “A movant can bear this initial burden ‘by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.’” (Ibid., citing Espejo v. Southern California Permanent Medical Group (2016) 246 Cal.App.4th 1047, 1060.) “At this step, a movant need not ‘follow the normal procedures of document authentication’ and need only ‘allege the existence of an agreement and support the allegation as provided in rule [3.1330].’ ” (Iyere, supra, 87 Cal.App.5th at p. 755, citing Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218-219.)” Here, Defendants appear to have complied with the above requirement by submitting the Declaration of Lianne Herold (a Human Resources Shared Services Lead and Generalist for Envista Holdings Corporation).
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		(Decl. of Herold ¶1.) As indicated above, attached to her declaration as Ex. C "is a true and correct copy of the DRA presented to Mr. Armstrong on the Workday system." (Id. ¶6.) This particular document is not signed. Rather, it appears to be Defendants' contention that pursuant to ¶14 of the DRA Armstrong agreed to arbitration when he clicked "I AGREE" in the Workday system. To that end, Ms. Herold declares: "6...On September 16, 2022, Workday sent out two automated emails to U.S. employees for each of the Defendants, including Mr. Armstrong, alerting them to two different tasks requiring their attention in Workday. The first related to Envista's new U.S. Employee Handbook and the second concerned Envista's DRA... "7. To my knowledge, in order to complete the above tasks in Workday, employees had to be connected to Envista's operating system using their own secure and confidential login password. Once connected on Envista's operating system, the employee could access Workday through single sign-on verification using a hyperlink in the automated emails from Workday. From there, the employee could access their Workday inboxes to view the separate task notification details. The employee could then view the document(s), instructions and acknowledgment statement for each particular task by clicking on the task notification. From there, the employee could complete the task by clicking on the "I Agree" box and then clicking "Submit." Whenever a task is completed, Workday records in an audit trail (i) which specific user account completed the task, and (ii) the date and time the task was completed. Workday maintains these records and no one at Envista has the capability to change the audit trail." (Decl. of Herold ¶¶6, 7.) Ms. Herold further declares that, she has the "capabilities to run reports outlining the date and time any employee of an Envista subsidiary, including Kerr or DH Dental,
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completed a task in Workday. I ran this report for Mr. Armstrong regarding the Workday task concerning the DRA. Attached hereto as Exhibit D is a true and correct copy of this report.” (Id. ¶9.)

Further, she declares, Armstrong acknowledged the DRA at 5:10 p.m. on September 18, 2022. (Id. ¶10.)

Notably, Ex. D is not an acknowledgment of Plaintiff’s agreement to the arbitration agreement; but rather, it appears to be a “Workday” report indicating that Plaintiff submitted his electronically checked acknowledgement of receipt of the handbook and DRA.

This evidence appears to suffice for the purpose of meeting the prima facie burden of alleging the existence of an agreement.

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. [Citation.]” (*Gamboa, supra*, 72 Cal.App.5th at p. 165.) This can be done by testifying under oath or declaring under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. (*Ibid.*) “To bear this burden, the arbitration opponent must offer admissible evidence creating a factual dispute as the authenticity of their signatures. The opponent need to prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature. [Citation.]” (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747,755.)

In opposition to this Motion, Plaintiff submits his Declaration wherein he states:

“4. I have reviewed the Dispute Resolution Agreement attached as Exhibit C to the

		Declaration of Lianne Herold (the DRA). I never saw the DRA until it was provided to me by my attorney in connection "5. I never signed the DRA or agreed to any of its terms, via the WorkDay system or otherwise in September 2022, or at any time before or after. "6. I understand that Envista contends that I electronically acknowledged the DRA on September 18, 2022 at 5:10 p.m. I do not believe that I would have been working at this time, because upon review of a text message with my mother, both my one-year-old daughter and I were sick on September 18, 2022, making it very unlikely that I would have been working this Sunday evening. 10. All legal agreements between myself and Envista were signed by hand or using DocuSign. I never once signed a document that I understood to be a legal agreement with Envista using Workday." (Decl. of Armstrong ¶¶4-6, 10.) Mr. Armstrong also testified at deposition that it did not make sense to receive a DRA via Workday "because anything related to someone's employment status was always done through DocuSign if a signature was required or through hard copy with wet signature. That was the only way we were trained as managers, as senior managers, as executives. That was the only way you could execute an agreement was either through DocuSign or wet signature. No other way." (Decl. of Wand ¶5, Ex. 1, page 131:15-23.) He also testified that prior to litigation he had never seen the DRA at issue herein. (Id., page173:10-16.) He also testified that he never acknowledged the handbook or the DRA. (Id. page 187:1-5.) While Plaintiff submits other evidence in support of his position that no agreement to arbitrate exists, this evidence suffices to create a factual dispute and shift the burden back to Defendants to authenticate Plaintiff's signature.
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		To meet this final burden, on 4/17/2026, Defendants filed two additional declarations: 1. Paulo Poinha (Workday Manager overseeing the administration, configuration, and optimization of the Workday system for Envista, Kerr, and DH Dental, including managing system updates and ensuring data integrity) (ROA 70) 2. Nicholas Guzowski (Paralegal providing support and legal-related functions for Envista Holdings Corporation) (ROA 72) Generally, as to electronic signatures, "Civil Code section 1633.9, subdivision (a), governs the authentication of electronic signatures. It provides that an electronic signature may be attributed to a person if "it was the act of the person." (Civ. Code, § 1633.9, subd. (a).) Further, "[t]he act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable." (Ibid.) For example, a party may establish that the electronic signature was "the act of the person" by presenting evidence that a unique login and password known only to that person was required to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions. (<i>See Espejo, supra</i>, 246 Cal.App.4th at p. 1062, 201 Cal.Rptr.3d 318; <i>Ruiz v. Moss Bros. Auto Group, Inc.</i> (2014) 232 Cal.App.4th 836, 844, 181 Cal.Rptr.3d 781.)" (<i>Bannister v. Marinidence Opco, LLC</i> (2021) 64 Cal.App.5th 541, 545.) In the Declaration of Poinha, he explains: "11. Because of my familiarity and experience with the operation and functionality of Workday, I understand the process that employees took in Workday to complete their review of the DRA after receiving notification of its distribution. An employee who received the DRA via Workday was requested by
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		Workday's notification email to log into their unique Workday account and navigate to their Workday inbox. To my knowledge, in order to log into their Workday account, employees had to be connected to their Envista account using their own secure and confidential login password that only they had access to. Once connected on their Envista account, the employee could, and would, access Workday through single sign-on verification using a hyperlink in the automated emails from Workday. From there, the employee could, and would, access their unique Workday inboxes to view the separate task notification details. Employees could and still can connect to Workday through their Envista account from any location with a stable internet connection sufficient to permit the use of single sign-on verification. This means that employees could as of 2022, and still can, connect to their Workday account from any accessible mobile devices, such as work computers, and/or personal or work phones, tablets or computers, from their homes or elsewhere. "12... Attached hereto as Exhibit D is a true and correct copy of the DRA task as it appeared in an Envista employee's Workday account. 14. For each employee who received the DRA through Workday in September 2022, including David Armstrong, the particular employee's DRA (i.e. David Armstrong's) could only be accessed by logging into the employee's unique Workday account.... 15... As Workday Manager, I am familiar with the information that Workday tracks, and I am also familiar with how to generate reports reflecting such information. As Workday Manager, I have the capability of generating this type of report for any current or former employee. As part of this case, I generated such a Workday report as to David Armstrong by navigating to Mr. Armstrong's Workday profile, selecting the "Personal" tab, and exporting the "Reviewed Documents" data. Attached hereto as Exhibit F is a true and correct screenshot of Mr. Armstrong's Workday profile depicting the "Personal" tab and the "Reviewed Documents" section from which the data was exported. Attached hereto
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		as Exhibit G is a true and accurate copy of the data that was exported from Workday in PDF format, reflecting David Armstrong's acknowledgement of the DRA and Employee Handbook via Workday. "16... The data reflected in the Workday report is populated by the Workday system at the moment that the employee, such as David Armstrong, clicks in the "I AGREE" box and then completes/submits the task by pressing the "Submit" button; it is not manually entered by any individual. Based on my knowledge with Workday reports, Exhibit G shows that David Armstrong on his own acknowledged the DRA by clicking in the "I agree" box and then the "Submit" button via Workday on September 18, 2022, at 5:10 p.m. PST." (Decl. of Poinha ¶¶ 11, 12, 14, 15, 16.) Notably, as to Ex. D, this is allegedly a copy of the DRA task as it appeared to Plaintiff. What is troubling here is that there is no mention of "Arbitration". Rather, there is simply mention of Dispute Resolution Agreement. Plus, one could click on the "I agree" button without reviewing the DRA document. The Declaration of Mr. Guzowski indicates as paralegal he has access to company emails, he declares: "5. In connection with the lawsuit filed by David Armstrong against Envista, Kerr, and DH Dental, I conducted searches for email communications in the Microsoft Purview platform. One search that I conducted was for emails sent from the email account workday.notifications@envistaco.com, which is an email account that generates notifications from Workday (a human resources information system used by Envista, Kerr, and DH Dental), to the email account, David.Armstrong@envistaco.com, which was the unique company-provided email account assigned to and used by Mr. Armstrong during his employment. The display name Attached hereto as Exhibit 1 are true and correct copies of emails that resulted from my search.
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"Attached as Ex. 1 are two emails sent from Envista HR: one relating to "Business Process: To Do: Review Envista U.S. Employee Handbook 20220901:David Armstrong", the second relating to "Business Process: To Do: Review DRA - CA Employees (All Other):David Armstrong"."

(Decl. of Guzowski ¶5, Ex. 1)

This evidence seems to suggest that the DRA email was sent to Plaintiff. While it is unclear if Plaintiff read the DRA, it appears he clicked on the "I AGREE" box.

In response to the above, on 5/8/2026 Plaintiff submitted a supplemental brief (ROA 78) as well as a Supplemental Declaration of David Armstrong (ROA 82), and a Supplemental Declaration of Attorney Aubry Wand (ROA 84.)

In Plaintiff's Supplemental Declaration he declares, among other things:

"12. To be clear, I do not remember signing into Workday at all on September 18, 2022. That Mr. Poinha claims that I signed into Workday during two simultaneous sessions on my work computer (and further that during one session I asked Workday to remember the device and in the other session I asked Workday not to remember the device) makes no sense."

(Supplemental Declaration of Armstrong ¶12.)

Ultimately, the Court concludes there was insufficient mutual consent here to form a contract. Under California law, "[i]t is essential to the existence of a contract" that (i) the parties are capable of contracting; (ii) the parties mutually consent to the contract; (iii) the contract serves a lawful object; and (iv) there is sufficient cause or consideration. Civ. Code § 1550.

Here, there is no evidence that Plaintiff actually signed, electronically or otherwise, an Arbitration Agreement. Plaintiff's signature was not affixed to any document. While

		disputed, it appears if anything, he may have clicked a stand alone "I AGREE" box and submitted that selection in Workday. (Decl. of Poinha, Ex. D). However, asking an employee to click on an "I AGREE" box, without identifying that the employee is agreeing to "ARBITRATION" does not establish a mutual consent to give up his right to a jury or Court trial. For this reason, the Motion is DENIED. The Court does not reach the issue of unconscionability, but notes that the above process appears procedurally unconscionable and full of surprise for the unsuspecting employee, especially considering, "All legal agreements between myself and Envista were signed by hand or using DocuSign. I never once signed a document that I understood to be a legal agreement with Envista using Workday." (Decl. of Armstrong¶10.) OBJECTIONS (ROA 46): Overruled, except as to No. 3 which is sustained. <i>Plaintiff to give notice.</i>
109	Aguirre vs. Davita, Inc. 24-01394742	<i>Continued to 9/10/2026.</i>
110	East Orange County Water District vs. Performance Pipeline Technologies, 22-01299697	Defendant Performance Pipeline Technologies ("defendant" or "PPT") moves for summary judgment in its favor. In the alternative, PPT asks for summary adjudication of eight issues. Plaintiffs Association of California Water Agencies Joint Powers Insurance Authority and East Orange County Water District ("EOCWD") (together, "Plaintiffs") oppose the motion and alternative motion. The pleadings play a key role in a summary judgment motion and set the boundaries of the issues to be resolved at summary judgment. (<i>Jacobs v. Coldwell Banker Residential Brokerage Co.</i> (2017) 14 Cal.App.5th 438, 444.) The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues' " and to frame the outer measure of materiality in a summary judgment proceeding. (<i>Hutton v. Fidelity National Title Co.</i> (2013) 213 Cal.App.4th 486, 493.) Thus, the analysis